

BEFORE THE
FEDERAL MARITIME COMMISSION

DOCKET NO. 22-31

TPG PRESSURE, INC.,
COMPLAINANT

v.

OMNI LOGISTICS LLC, *et al.*,
RESPONDENTS.

**RESPONDENTS OMNI LOGISTICS LLC’S AND EPIC FREIGHT SOLUTIONS
LLC’S ANSWER AND AFFIRMATIVE DEFENSES TO FIRST AMENDED
VERIFIED COMPLAINT OF COMPLAINANT TPG PRESSURE, INC.**

Respondent Omni Logistics, LLC (“Omni”) and Respondent Epic Freight Solutions LLC (“Epic”) (Omni and Epic are sometimes referred to collectively as “Respondents”), by their undersigned attorneys, submit this Answer and Affirmative Defenses to the First Amended Verified Complaint (“Complaint”) of Complainant TPG Pressure, Inc. (“Complainant”), alleging certain violations of the Shipping Act of 1984, 46 U.S.C. §40101, *et. seq.* (the “Shipping Act”) as amended by Ocean Shipping Reform Act of 2022 (“OSRA-22”) and certain regulations promulgated thereunder.

I. PARTIES

1. Respondents lack sufficient knowledge or information to form a belief as to the truth of the allegations contained in Paragraph 1 of the Complaint and therefore deny the same.
2. Respondents lack sufficient knowledge or information to form a belief as to the truth of the allegations contained in Paragraph 2 of the Complaint and therefore deny the same.

3. Respondents admit the allegations contained in Paragraph 3 of the Complaint, subject to the correction that Epic's current mailing address is 3200 Olympus Blvd. Suite 300, Dallas, Texas 75019.

4. Respondents admit the allegations contained in Paragraph 4 of the Complaint, subject to the correction that Omni's current mailing address is 3200 Olympus Blvd. Suite 300, Dallas, Texas 75019.

5. In response to the allegations contained in Paragraph 5 of the Complaint, Epic admits that until March 10, 2023, it maintained an ocean transportation intermediary's license No. 027656NF. Epic denies that it operated as a non-vessel operating common carrier in relation to Complainant or its allegations. Respondents deny any remaining allegations contained in Paragraph 5 of the Complaint.

6. In response to the allegations contained in Paragraph 6 of the Complaint, Omni admits that it maintains an ocean transportation intermediary's license No. 18469. Omni denies that it operated as a non-vessel operating common carrier in relation to Complainant or its allegations. Respondents deny any remaining allegations contained in Paragraph 6 of the Complaint.

7. In response to the allegations contained in Paragraph 7 of the Complaint, Respondents admit that the Federal Maritime Commission has certain regulatory authority over them when Respondents operate as non-vessel operating common carriers as defined by 46 U.S.C. § 40102(17). Respondents deny the remaining allegations contained in Paragraph 7 of the Complaint.

II. JURISDICTION

8. Respondents deny the allegation contained in Paragraph 8 of the Complaint.

9. Respondents deny the allegation contained in Paragraph 9 of the Complaint.
10. Respondents deny the allegation contained in Paragraph 10 of the Complaint.
11. Respondents deny the allegation contained in Paragraph 11 of the Complaint.

III. FACTUAL ALLEGATIONS

12. Respondents lack sufficient knowledge or information to form a belief as to the truth of the allegations contained in Paragraph 12 of the Complaint and therefore deny the same.

13. In response to the allegations contained in Paragraph 13 of the Complaint, Respondents admit that certain invoices were issued to Complainant for services rendered by Epic. Respondents deny the remaining allegations contained in Paragraph 13 of the Complaint.

14. In response to the allegations contained in Paragraph 14 of the Complaint, Respondents admit that effective April 2, 2021, Epic is a wholly owned subsidiary of Omni and that Omni has issued invoices on Epic's behalf. Respondents deny the remaining allegations contained in Paragraph 14 of the Complaint.

15. In response to the allegations contained Paragraph 15¹ of the Complaint, Respondents admit that Omni issued invoices bearing Omni's name on Epic's behalf, that the primary personnel with whom Complainant communicated regarding Epic's services did not change in the spring 2022, and that David Ikemoto's former and current titles are correctly stated in paragraph 15. Respondents deny the remaining allegations contained in Paragraph 15 of the Complaint.

16. In response to the allegations contained in Paragraph 16 of the Complaint, including its subparts, Respondents admit that Omni has a NVOCC license and that Epic had a NVOCC license until March 10, 2023; that they maintained a copy of their tariffs for public review; that the

¹ Respondents also note that, based on the apparent typographical error – “[ocean and land?]” – contained in Paragraph 15 of the Complaint, Complainant is apparently unaware of what kind of services it was procuring from Respondents.

Complainant has quoted portions of Omni's website; and that Omni's terms and conditions are posted on its website. Respondents deny any remaining allegations contained in Paragraph 16 of the Complaint, including its subparts.

17. Respondents deny the allegations contained in Paragraph 17 of the Complaint.

18. In response to the allegations contained in Paragraph 18 of the Complaint, Respondents deny that they did not provide Complainant "information as to where information about demurrage can be found" and deny that 46 C.F.R. § 545.5 applies to Respondents in the context alleged in Paragraph 18. Respondents deny any remaining allegations contained in Paragraph 18 of the Complaint.

19. Respondents deny the allegations contained in Paragraph 19 of the Complaint.

20. Respondents deny the allegations contained in Paragraph 20 of the Complaint.

21. In response to the allegations contained in Paragraph 21 of the Complaint, Respondents admit that bills of lading were issued by various entities. Respondents deny any remaining allegations contained in Paragraph 21 of the Complaint.

22. In response to the allegations contained in Paragraph 22 of the Complaint, Respondents deny that an incomplete list of invoices is attached to the Complaint as Exhibit B and Respondents deny that Complainant is not in possession of all invoices. Respondents deny any remaining allegations contained in Paragraph 22 of the Complaint.

23. In response to the allegations contained in Paragraph 23 of the Complaint, Respondents admit that some of the specific information identified in subparts a – h was not included on Respondents' invoices, but Respondents deny that this information was required to be included in Respondents' invoices. Respondents deny the remaining allegations contained in Paragraph 23 of the Complaint, including its subparts.

24. Respondents deny the allegations contained in Paragraph 24 of the Complaint.
25. Respondents deny the allegations contained in Paragraph 25 of the Complaint.
26. Respondents deny the allegations contained in Paragraph 26 of the Complaint.
27. Respondents deny the allegations contained in Paragraph 27 of the Complaint.
28. Respondents deny the allegations contained in Paragraph 28 of the Complaint.
29. Respondents deny the allegations contained in Paragraph 29 of the Complaint.
30. Respondents lack sufficient knowledge or information to form a belief as to the truth of the allegations contained in Paragraph 30 of the Complaint that Complainant has paid \$860,000 for demurrage and other additional charges, as it is not clear what time period or invoices Complainant is alleging it paid, and therefore deny same. Respondents deny any remaining allegations contained in Paragraph 30 of the Complaint.
31. Respondents deny the allegations contained in Paragraph 31 of the Complaint.
32. In response to the allegations contained in Paragraph 32 of the Complaint, Respondents admit that Complainant is currently indebted to Epic for unpaid services and costs in an amount in excess of \$390,000.00.
33. Respondents deny the allegations contained in Paragraph 33 of the Complaint.
34. In response to the allegations contained in Paragraph 34 of the Complaint, Respondents admit that Complainant, through its counsel, sent a demand to Respondents and that Complainant owes Epic in excess of \$390,000.00. Respondents deny the remaining allegations contained in Paragraph 34 of the Complaint

IV. VIOLATIONS BY RESPONDENTS

COUNT I – VIOLATION OF 46 U.S.C. § 41102(c)

35. In response to the allegation contained in Paragraph 35 of the Complaint, Respondents incorporate their responses above as if fully restated herein.

36. Respondents deny the allegations contained in Paragraph 36 of the Complaint.

37. In response to the allegations contained in Paragraph 37 of the Complaint, Respondents admit that Complainant has accurately quoted a portion of Section 41102(c) of the Shipping Act but deny that the quoted section applies to Respondents. Respondents deny any remaining allegations contained in Paragraph 37 of the Complaint.

38. In response to the allegations contained in Paragraph 38 of the Complaint, Respondents admit that Complainant has accurately quoted portions of Section 41102(c) of the Shipping Act and Section 545.5 but deny that the quoted portions of the statute and Rule apply to Respondents. Respondents deny any remaining allegations contained in Paragraph 38 of the Complaint.

39. Respondents deny the allegations contained in Paragraph 39 of the Complaint.

40. In response to the allegations contained in Paragraph 40 of the Complaint, Respondents admit that the Federal Maritime Commission has adopted the Interpretive Rule and that portions of the Interpretive Rule are quoted in Paragraph 40 of the Complaint. Respondents deny the remaining allegations contained in Paragraph 40 of the Complaint.

41. Respondents deny the allegations contained in Paragraph 41 of the Complaint, including its subparts.

COUNT II – VIOLATION OF 46 U.S.C. § 41104(a)(14)

42. In response to the allegation contained in Paragraph 42 of the Complaint, Respondents incorporate their responses above as if fully restated herein.

43. In response to the allegations contained in Paragraph 43 of the Complaint, Respondents admit that Complainant has partially quoted 46 U.S.C. § 41104(a)(14) but deny that the quoted portion applies to Respondents. Respondents deny the remaining allegations contained in Paragraph 43 of the Complaint.

44. In response to the allegations contained in Paragraph 44 of the Complaint, Respondents admit that Complainant has partially quoted 46 U.S.C. § 41102(d) but deny that the quoted portion applies to Respondents. Respondents deny the remaining allegations contained in Paragraph 44 of the Complaint.

45. Respondents deny the allegations contained in Paragraph 45 of the Complaint.

46. Respondents deny the allegations contained in Paragraph 46 of the Complaint.

47. Respondents deny the allegations contained in Paragraph 47 of the Complaint, including its subparts.

48. Respondents deny the allegations contained in Paragraph 48 of the Complaint.

49. Respondents deny the allegations contained in Paragraph 49 of the Complaint.

COUNT III – VIOLATION OF 46 U.S.C. § 41104(a)(15)

50. In response to the allegation contained in Paragraph 50 of the Complaint, Respondents incorporate their responses above as if fully restated herein.

51. In response to the allegations contained in Paragraph 51 of the Complaint, Respondents admit that Complainant has partially quoted 46 U.S.C. § 41104(a)(15) but deny that the quoted portion applies to Respondents. Respondents deny the remaining allegations contained in Paragraph 15 of the Complaint.

52. In response to the allegations contained in Paragraph 52 of the Complaint, Respondents admit that Complainant has partially quoted 46 U.S.C. § 41102(d) but deny that the

quoted portion applies to Respondents. Respondents deny the remaining allegations contained in Paragraph 52 of the Complaint.

53. Respondents deny the allegations contained in Paragraph 53 of the Complaint.

54. Respondents deny the allegations contained in Paragraph 54 of the Complaint.

55. Respondents deny the allegations contained in Paragraph 55 of the Complaint.

56. Respondents deny the allegations contained in Paragraph 56 of the Complaint, including its subparts.

57. Respondents deny the allegations contained in Paragraph 57 of the Complaint.

58. Respondents deny the allegations contained in Paragraph 58 of the Complaint.

V. CAUSATION

59. Respondents deny the allegations contained in Paragraph 59 of the Complaint.

VI. COMPLAINANT'S DAMAGES

60. Respondents deny the allegations contained in Paragraph 60 of the Complaint.

61. Respondents deny the allegations contained in Paragraph 61 of the Complaint.

VII. PRAYER FOR RELIEF

62. Respondents deny that Complainant is entitled in the "Prayer for Relief" Section of "Wherefore" clause of the Complaint, including subparts 1-4.

AFFIRMATIVE DEFENSES

FIRST AFFIRMATIVE DEFENSE

The Federal Maritime Commission lacks subject matter jurisdiction over the allegations in the Complaint.

SECOND AFFIRMATIVE DEFENSE

The Federal Maritime Commission lacks personal jurisdiction over Respondents with respect to the allegations in the Complaint.

THIRD AFFIRMATIVE DEFENSE

The Complaint fails to state a claim upon which relief may be granted.

FOURTH AFFIRMATIVE DEFENSE

Complainant has failed to allege the essential elements of a claim under 46 U.S.C. § 41102(c).

FIFTH AFFIRMATIVE DEFENSE

Complainant has failed to allege the essential elements of a claim under 46 U.S.C. § 46 U.S.C. § 41104(a)(14).

SIXTH AFFIRMATIVE DEFENSE

Complainant has failed to allege the essential elements of a claim under 46 U.S.C. § 46 U.S.C. § 41104(a)(15).

SEVENTH AFFIRMATIVE DEFENSE

Counts II and III are barred with respect to invoices that were issued before the enactment of OSRA-22.

EIGHTH AFFIRMATIVE DEFENSE

The Complaint is barred, in whole or in part, by the doctrine of unclean hands.

NINTH AFFIRMATIVE DEFENSE

The Complaint is barred, in whole or in part, by the doctrine waiver and estoppel.

TENTH AFFIRMATIVE DEFENSE

The Complaint is barred, in whole or in part, by the doctrine of laches.

ELEVENTH AFFIRMATIVE DEFENSE

The Complaint is barred to the extent it that it seeks reparations for costs other than detention and demurrage.

TWELFTH AFFIRMATIVE DEFENSE

The Complaint is barred, in whole or in part, by the safe harbor provided in 46 U.S.C. § 41104(e).

WHEREFORE, having fully answered the Complaint, Respondents request that a hearing be held in Washington, D.C., and pray for an order dismissing the Complaint, and awarding Respondents their costs and reasonable attorneys' fees.

Respectfully submitted,

**BENESCH, FRIEDLANDER,
COPLAN & ARONOFF LLP**

By: /s/ Marc S. Blubaugh

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*Counsel for Respondents Omni Logistics LLC
and Epic Freight Solutions LLC*

VERIFICATION

David Ikemoto, Director of International Operations for Omni Logistics, LLC, pursuant to 28 U.S.C. § 1746, hereby declares under penalty of perjury that he has read the foregoing Respondents Omni Logistics LLC's and Epic Freight Solutions LLC's Answer and Affirmative Defenses to First Amended Verified Complaint of Complainant TPG Pressure, Inc. and that the facts stated therein to the best of his knowledge, information and belief, are true and correct on information, belief, and upon information received from others.

Dated: May 2, 2023



David Ikemoto
Director of International
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CERTIFICATE OF SERVICE

I HEREBY CERTIFY that on this 2nd day of May, 2023, a true and correct copy of the foregoing was served via electronic mail on:

Tiffany N. Compres, Esq. (tiffany.compres@fisherbroyles.com)
Gene M. Burd (gene.burd@fisherbroyles.com)

Counsel for Complainant TPG Pressure, Inc.

/s/ Marc S. Blubaugh

Marc S. Blubaugh